

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DONNA KATRI WYNDER, *Claimant*

v.

DOCKET NO. 1962(F)

RYAN SIMS; SIMS, WATERS & ASSOCIATES, INC. D/B/A
SUNSHINE GLOBAL TRANSPORT; MOHAMMAD MADI; DEBRA
CAESH D/B/A SEA & SHORE SHIPPING, INC., *Respondents*.

Served: February 13, 2019

BEFORE: Clay G. GUTHRIDGE, *Administrative Law Judge*.

INITIAL ORDER and ORDER TO SUPPLEMENT THE RECORD

I. INTRODUCTION AND PROCEDURAL HISTORY.

On October 25, 2018, the Commission received a complaint from Donna Katri Wynder. The Office of the Secretary docketed the filing as an informal complaint pursuant to 46 C.F.R. Subpart S and issued a Notice of Filing of Small Claims Complaint and Assignment for the proceeding. The Office of the Secretary assigned the proceeding to the Chief Administrative Law Judge for appointment of a Small Claims Officer. 46 C.F.R. § 502.301(b). On November 19, 2018, respondents Ryan Sims and Sims and Waters & Associates, Inc. d/b/a Sunshine Global Transport (Sims Waters) filed an objection to proceeding informally; therefore, the proceeding was assigned to the undersigned for adjudication as a formal proceeding under 46 C.F.R. Subpart T. 46 C.F.R. § 502.311.

The Complaint alleges that respondents Ryan Sims, Sims Waters, Mohammad Madi, and Debra Caesh d/b/a Sea & Shore Shipping Inc. violated 46 U.S.C. § 41102(c) of the Shipping Act in connection with the transportation of Claimant's vehicle from the United States to Nigeria. Wynder seeks damages in the amount of \$11,600 representing the declared value of the car and the \$1,600 ocean freight paid for shipping. (Complaint at 6.)

Ryan Sims and Sims, Waters & Associates, Inc. (collectively "Sims") filed a joint response and Sea & Shore Shipping Inc. (Sea & Shore) filed a response through its president and owner, Iman Mustapha Safa.

II. MOTIONS TO DISMISS AND MOTION FOR A MORE DEFINITE STATEMENT.

Respondents Sims and Sea & Shore filed motions to dismiss this proceeding. Sims contends that the "complaint should be dismissed because it fails to state a claim against

Respondent Ryan Sims upon which relief can be granted because 46 U.S.C. § 41102(c) is not applicable to Ryan Sims because he is not a ‘common carrier, marine terminal operator, or ocean transportation intermediary.’” (Sims Motion at 4.) Sims also contends that “[Claimant] has not established that Respondents ‘fail[ed] to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing or delivering property,’ as required by 46 U.S.C. § 41102(c).” (Sims Motion at 4.) In addition, Sims contends that the complaint “fails to state a claim against Sims Waters upon which relief can be granted because the [Commission] does not have subject matter jurisdiction over the claims alleged in the complaint.” (Sims Motion at 4-5.) “In the event that [the Commission] determines that Claimant’s claims against Respondents should not be dismissed, Respondents alternatively request, under Rule 12(e) of the Federal Rules of Civil Procedure, a more definite statement setting forth the Claimant’s allegations against Respondents.” (Sims Motion at 8.)

Sea & Shore states: “Since May 15, 2017, Iman M. Safa has had new OWNERSHIP, new BOND, & a new NVOCC License for Sea & Shore Shipping Inc., also, never had any business or known [sic] or contact or familiar [sic] with the claimant.” (Sea & Shore Motion at 1.)

Although 46 C.F.R. § 502.12, cited by Sims, of the Commission’s Rules of Practice and Procedure provides that “the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice” for proceedings “which are not covered by a specific Commission rule,” Rule 12 of the Federal Rules of Civil Procedure is not applicable to Subpart T proceedings. The rules governing motions to dismiss and motions for a more definite statement appear in Subpart E. The rule governing procedure in Subpart T proceedings states that “[e]xcept otherwise specifically provided in this subpart or in paragraph (b) of this section, the sections in subparts A through Q, inclusive, of this part do not apply to situations covered by [Subpart T].” 46 C.F.R. § 502.321. Section 502.12 is in Subpart A. The Subpart T rules do not provide for motions. Therefore, it is hereby

ORDERED that Sims’ and Sea & Shore’s motions be **DENIED WITHOUT PREJUDICE**. Respondents may raise the arguments set forth in their motions in their briefs to be filed pursuant to this Order.

III. ARGUMENT ON COMMISSION RULE INTERPRETING SECTION 41102(c).

The Complaint alleges a substantive violation of one section of the Shipping Act: that “Respondents acted capriciously, deceitful, and negligent in their service delivery [sic]. 46 U.S. Code § 41102(c).” (Complaint § V.) Section 41102 provides that a “common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c).

The Commission recently issued a final rule in Commission Docket No. 18-06 addressing allegations of unjust and unreasonable practices and regulations under section 41102(c) (formerly section 10(d)(1) of the Shipping Act), the section of the Act that Wynder alleges was violated by Respondents. *Interpretive Rule, Shipping Act of 1984*, 83 Fed. Reg. 64478 (Dec. 17, 2018), codified at 46 C.F.R. § 545.4; found at <https://www.fmc.gov/18-06/>. The Interpretive Rule states:

46 U.S.C. 41102(c) is interpreted to require the following elements in order to establish a successful claim for reparations:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

This Interpretive Rule is relevant to this proceeding. The parties are directed to review the Interpretive Rule now to consider this impact. When the parties file their proposed findings of fact and briefs to be filed pursuant to Part VII of this Order, they must identify facts relevant to these elements and include argument addressing the Rule's impact on the outcome.

IV. CONSULTATION WITH CADRS.

The parties are instructed to discuss whether they can reach a settlement of this proceeding. On or before March 1, 2019, the parties must participate in a preliminary conference with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS) as to whether the matter may be resolved through mediation. The preliminary conference may be conducted either in person or via telephone, video conference, or other forum. *See* 46 C.F.R. § 502.64. The CADRS office may be reached at 202-523-5807, Toll Free (US only): 866-448-9586.

On or before March 8, 2019, the parties must file a joint status report. The report *must not provide details regarding settlement negotiations* but should indicate whether or not settlement was discussed. In addition, the parties may describe any issues that need to be resolved prior to issuing a briefing schedule.

V. EXHIBITS AND PRELIMINARY FINDINGS OF FACT.

A. Documentary Evidence Identified As Exhibits.

The parties submitted a number of documents as exhibits with the Complaint and Respondents' responses to the Complaint.

Complainant's exhibits submitted with the Complaint

Complaint Ex. 1. Email dated October 30, 2015, from Ryan Sims to Donna

- Wynder containing unknown attachments.
- Complaint Ex. 2. Sims, Waters & Associates, Inc. document confirming a booking and containing shipping instructions and information.
- Complaint Ex. 3. Sims, Waters & Associates, Inc., dock receipt dated October 30, 2015.
- Complaint Ex. 4. Email from Ryan Sims to Donna Wynder.
- Complaint Ex. 5. String of text messages between Donna Wynder and Ryan Sims.
- Complaint Ex. 6. Email from Ryan Sims to Donna Wynder.
- Complaint Ex. 7. Sims, Waters & Associates, Inc. document titled “Please see below list of information we need for your shipment.”
- Complaint Ex. 8. Document titled “CUSTOMS POWER OF ATTORNEY and Acknowledgment of Terms and Conditions” signed by Wynder dated October 30, 2015.
- Complaint Ex. 9. Duplicate copy of the Sims, Waters & Associates, Inc., dock receipt dated October 30, 2015.
- Complaint Ex. 10. Sims, Waters & Associates, Inc., booking request form for Donna Katri Wynder.
- Complaint Ex. 11. String of text messages between Donna Wynder and Mohammad Madi.
- Complaint Ex. 12. Emails between Debra Caesh and Donna Wynder.
- Complaint Ex. 13. Document titled “Video Recording” from Donna Wynder to Debra Caesh.
- Complaint Ex. 14. Emails between Debra Caesh and Donna Wynder.
- Complaint Ex. 15. Sallaum Lines draft bill of lading.
- Complaint Ex. 16. Sallaum Lines signed original bill of lading.
- Complaint Ex. 17. Front and back copies of a New York State vehicle certificate of title for a 2007 Cadillac Escalade showing Juan E. Vasquez as the owner.
- Complaint Ex. 18. Document titled “Vehicle Bill of Sale” for a 2007 Cadillac Escalade showing sale of the vehicle by Juan E. Vasquez to

Donna Katri Wynder.

- Complaint Ex. 19. Sea & Shore Shipping Inc. document listing the declared value of the 2007 Cadillac Escalade as \$10,000.”
- Complaint Ex. 20. Video recording showing the 2007 Cadillac Escalade being loaded onto a truck.

Sims exhibits submitted with their Responses

- Sims Ex. A. Document titled “CUSTOMS POWER OF ATTORNEY and Acknowledgment of Terms and Conditions” signed by Donna Wynder dated October 30, 2015.
- Sims Ex. B. Sims, Waters & Associates, Inc., dock receipt dated October 30, 2015.
- Sims Ex. C. Sims, Waters & Associates, Inc dispatch sheet for pick up of Donna Wynder’s 2007 Cadillac Escalade by Ahmed Takane of A Plus Transport.
- Sims Ex. D. Email from Donna Sims to Ryan Sims terminating Sims’ services.
- Sims Ex. E. Affidavit of Myra Sims, director, president, and secretary of Sims & Waters.
- Sims Ex. F. “General Service Agreement” between Donna Wynder and Ahmed Takane.

Sea & Shore’s exhibits submitted with their Responses

- Sea & Shore Ex. A. 2018 Florida Profit Corporation Annual Report for Sea & Shore.
- Sea & Shore Ex. B. 2017 Florida Profit Corporation Annual Report for Sea & Shore.
- Sea & Shore Ex. C. Letter bearing a Sea & Shore letter head signed by Imam M. Safa as President and Debra M. Caesh as Secretary stating: “This is a letter of minutes to inform you Debra Caesh will [be] handing her company over to Iman M. Safa. Iman M. Safa will take on as owner/President, Debra Caesh will continue as the qualifying individual and Secretary.”

The exhibits are admitted as part of the record and will be given appropriate weight. Complainant should identify any additional exhibits beginning with the designation “Complaint

Ex. 21.” Sims should identify any additional exhibits beginning with the designation “Sims Ex. G.” Sea & Shore should identify any additional exhibits beginning with the designation “Sea & Shore Ex. D.” The parties are reminded to include page numbers on all exhibits and refer to a particular page of that exhibit when citing to it.

B. Preliminary Findings of Fact.

The undersigned makes the following preliminary findings based on the Verified Complaint, statements by Respondents in their motions to dismiss, and exhibits attached to the Complaint and motions to dismiss. The parties are directed to review the preliminary findings of fact. On or before March 22, 2019, each party is instructed to serve and file a statement stating whether they stipulate to these findings. Any finding to which a party does not stipulate or agree should be set out in full with a citation to the traversing evidence. Any traversing evidence not already in the record must be served and filed with the statement with exhibits identified as stated above.

1. Complainant Donna Katri Wynder is an individual residing in the State of New York. (Complaint at 3.)¹
2. Respondent Sims, Waters & Associates, Inc. is an FMC-licensed non-vessel-operating common carrier (NVOCC) and ocean freight forwarder, FMC License No. 003025. (Official Notice, FMC OTI List, <http://www2.fmc.gov/oti/NVOCC.aspx>, accessed February 7, 2019.)
3. Respondent Ryan Sims is the Vice President/Treasurer of Sims & Waters. (Official Notice, FMC RPI, <https://home-fmcgov.msapproxy.net/rpi/OfficerOwnership.aspx>, accessed February 11, 2019.)
4. Respondent Sea & Shore Shipping, Inc. (Sea & Shore) is a corporation organized under the laws of the State of Florida. (Sea & Shore Exhibit B.)
5. Sea & Shore is licensed by the Commission as an NVOCC, FMC License No. 025542. (Official Notice, FMC OTI List, <http://www2.fmc.gov/oti/NVOCC.aspx>, accessed February 7, 2019; Sea & Shore Mot. To Dismiss at 1.)²
6. Iman Mustafa Safa has been the owner and president of Sea & Shore since May 15, 2017. (Sea & Shore Mot. To Dismiss at 1; Sea & Shore Exhibit C; Official Notice, FMC RPI, <https://home-fmcgov.msapproxy.net/rpi/OfficerOwnership.aspx>, accessed February 11, 2019.)
7. Respondent Debra Caesh was the president and qualifying individual when Sea & Shore was first licensed as an OTI license in April 2015 (Official Notice, FMC RPI,

¹ Some pages in the Complaint are not numbered. For ease of reference all pages in the Complaint are treated as numbered sequentially from the first page to the last.

² Sea & Shore did not number the pages of its Answer. For ease of reference all pages in Sea & Shore’s Answer are numbered sequentially from the first page to the last.

<https://home-fmcgov.msapproxy.net/rpi/OfficerOwnership.aspx>, accessed February 11, 2019.)

8. When Complainant arranged with Sea & Shore to ship her vehicle (November 2015), Debra Caesh was the president and qualifying individual for Sea & Shore. (Official Notice, FMC RPI, <https://home-fmcgov.msapproxy.net/rpi/OfficerOwnership.aspx>, accessed February 11, 2019.)
9. Debra Caesh incorporated Sea & Shore in the State of Florida in January 2015. (Official Notice, Florida Department of State Division of Corporations Website at <http://search.sunbiz.org/Inquiry/CorporationSearch/SearchResultDetail?inquirytype=EntityName&directionType=Initial&searchNameOrder=SEASHORESHIPPING%20P150000094390&aggregateId=domp-p15000009439-d69562d1-9fc3-4e99-af63-d602e0e4ed06&searchTerm=seashore%20shipping&listNameOrder=SEASHORESHIPPING%20P110001004830>; Sea & Shore Electronic 2015 Articles of Incorporation at <http://search.sunbiz.org/Inquiry/CorporationSearch/ConvertTiffToPDF?storagePath=COR%5C2015%5C0130%5C90901539.tif&documentNumber=P15000009439>.)
10. Since May 15, 2017, Debra Caesh has been the secretary of Sea & Shore and remains its qualifying individual. (Sea & Shore Mot. To Dismiss at 1; Sea & Shore Exhibit C; Official Notice, Official Notice, FMC RPI, <https://home-fmcgov.msapproxy.net/rpi/OfficerOwnership.aspx>, accessed February 11, 2019.)
11. Prior to Debra Caesh becoming the president of Sea & Shore, Mohammad Madi was the registered agent for Sea & Shore. Mohammad Madi incorporated Sea & Shore in the State of Florida in November 2011. (Official Notice, Florida Department of State Division of Corporations Website at <http://search.sunbiz.org/Inquiry/CorporationSearch/SearchResultDetail?inquirytype=EntityName&directionType=Initial&searchNameOrder=SEASHORESHIPPING%20P110001004830&aggregateId=domp-p11000100483-100b89b9-bc80-4e18-877b-997a55fa98af&searchTerm=seashore%20shipping&listNameOrder=SEASHORESHIPPI NG%20P110001004830>; Sea Shore Shipping Articles of Incorporation at <http://search.sunbiz.org/Inquiry/CorporationSearch/ConvertTiffToPDF?storagePath=COR%5C2011%5C1123%5C80383718.tif&documentNumber=P11000100483>.)
12. Respondent Mohammad Madi is currently an officer and/or employee of Sea & Shore. (Complaint at 1, 5.)
13. Sea & Shore retains the same name, organization and license number that it had prior to the change of ownership from Debra Caesh to Iman Mustafa Safa. (Official Notice, FMC RPI, <https://home-fmcgov.msapproxy.net/rpi/OfficerOwnership.aspx>, accessed February 11, 2019.)
14. On October 19, 2015, Complainant Wynder purchased a 2007 Cadillac Escalade ESV for \$15,000. (Complaint Ex. 18.)

15. On October 30, 2015, Wynder entered into a contract with Sims to ship the Cadillac from New York to Lagos, Nigeria. (Complaint at 3; Complaint Ex. 3; Sims Motion to Dismiss at 1-2.)
16. On October 30, 2015, Sims issued a dock receipt to Wynder for the transportation of the Cadillac from New York to Lagos, Nigeria. (Complaint at 3; Complaint Ex. 3; Sims Motion to Dismiss at 1-2; Sims Ex. B.)
17. On October 30, 2015, Sims made arrangements with A Plus Transport, LLC (A Plus Transport), a carrier, through A Plus Transport's agent, Ahmed Takane, to pick up the Cadillac from Wynder for delivery to Bayonne Auto Terminal in Bayonne, New Jersey. (Sims Motion to Dismiss at 2; Sims Ex. C.)
18. On October 31, 2015, Ahmed Takane A Plus Transport agents loaded the Cadillac onto a truck to transport it to the Bayonne Auto Terminal. (Complaint at 3; Complaint Ex. 3; Sims Motion to Dismiss at 2.)
19. When A Plus Transport picked up the Cadillac on October 31, 2015, from Wynder there was no visible damage to the vehicle and the agents sent to pick up the vehicle were able to drive the vehicle onto the truck used to transport it. (Complaint at 4; Complaint Ex. 20 (video recording submitted by Wynder.))
20. After pick up of the Cadillac, Ahmed Takane subsequently informed Wynder (date not specified) that the "vehicle was inoperable" and that "he was unable to move the vehicle because it was badly damaged." (Complaint at 4.)
21. On November 4, 2015, Wynder sent an email to Ryan Sims stating: "I do not wish to continue utilizing service [sic] and would like to have my vehicle returned to me as quickly as possible. Thank you." (Sims Ex. D.)
22. Sims did not receive any payments from Wynder. (Sims Motion to Dismiss at 4; Sims Ex. E.)
23. On November 7, 2015, Wynder entered into an agreement with Ahmed Takane to arrange the transportation of the Cadillac to Nigeria for \$1,600 through a different transportation provider. (Complaint at 4-5.)
24. Ahmed Takane subsequently connected Wynder to Mohammad Madi and Debra Caesh of Sea & Shore to take over the shipping of the Cadillac to Nigeria. (Complaint at 5.)
25. Sea & Shore shipped the vehicle from the United States to Nigeria on Sallalum Lines DMCC. (Complaint at 5-6; Complaint Ex. 16.)
26. Sea & Shore did not timely provide Wynder a bill of lading for the vehicle and ultimately provided a draft bill of lading that was then rejected by the Nigerian authorities. (Complaint at 5-6.)

27. The failure to timely provide the bill of lading resulted in the accrual of demurrage and other fees on the shipment as well as added costs to Wynder. (Complaint at 6-7.)
28. There were additional damages to the Cadillac due to its exposure to the elements at sea and theft of some of its parts, including the battery, during the delay in clearing the vehicle in Nigeria because of incorrect documentation provided by Sea & Shore. (Complaint at 6.)
29. Wynder purchased marine insurance for the shipment. (Complaint Ex. 14.)
30. The declared value of the Cadillac was \$10,000. (Complaint Ex. 19.)

VI. ORDER TO SUPPLEMENT THE EVIDENTIARY RECORD.

To prevail in a proceeding brought to enforce the Shipping Act, a complainant has the burden of proving by a preponderance of the reliable, probative, and substantial evidence that the respondent violated the Act. 5 U.S.C. § 556(d) (“Except as otherwise provided by statute, the proponent of a rule or order has the burden of proof.”); 46 C.F.R. § 502.203; *Exclusive Tug Franchises*, 29 S.R.R. 718, 718-719 (ALJ 2001). Commission Rules provide that in a Subpart T proceeding, the “administrative law judge may require the submission of additional affidavits, documents, or memoranda from complainant or respondent.” 46 C.F.R. § 502.314. Pursuant to this authority, the parties are **ORDERED** to supplement the record by responding to the questions below and producing the document requested below.

Responses to the questions must be made under oath before a notary public or by declaration subject to the penalties for perjury. *See* 28 U.S.C. § 1746. An original and five copies of the responses to the questions and any accompanying documents must be filed with the Secretary, Federal Maritime Commission, 800 N. Capitol Street, NW, Washington, DC 20573-0001. *See* 46 C.F.R. § 502.321(b) and 46 C.F.R. § 502.2(c) (Commission rules for filing documents). The parties are advised that regular mail to the Commission is often delayed and occasionally damaged by security precautions; accordingly, the parties are encouraged, but not required, to send filings to the Secretary by overnight delivery service. In addition, the filing party should send the document electronically to the Commission at the following email addresses: secretary@fmc.gov and judges@fmc.gov. At the time of filing, a copy of the responses and documents must be served on the other party as required by 46 C.F.R. § 502.320.

A. Wynder.

On or before March 22, 2019, complainant Donna Katri Wynder is **ORDERED** to file and serve responses to the following questions and file and serve the requested documents.

1. The Complaint states that on October 30, 2015, you entered into a contract with Sims to provide door to door shipment of your 2007 Cadillac Escalade ESV to Nigeria and that Sims sent Ahmed Takane on October 31, 2015, to pick up your vehicle for shipment. Did you pay any fees to Sims? Provide proof of such payment to Sims, if available.
2. The Complaint states that you subsequently informed Sims that you no longer required their services and then paid Ahmed Takane \$1,600 in cash to ship your vehicle to Nigeria instead.

How much of the payment to Takane was passed on to Sea & Shore? Provide a copy of the invoice for payment from Takane or Sea & Shore and your proof of payment, if available.

3. What specific services by Sims were agreed upon for the \$1,600 charges? What services were ultimately provided or not provided?
4. The Complaint alleges that Sims and Takane stated to you that the vehicle was taken to a shipping harbor in New Jersey but that the vehicle was actually left at an unknown location and was exposed to inclement weather conditions and theft. Provide proof that the vehicle was stored at a location other than Bayonne Auto Terminal in Bayonne, New Jersey.
5. The Complaint alleges that the “vehicle arrived at Lagos, with exterior damages to the body of the vehicle, missing battery; and was too inoperable for agents to even disembark from ship to transport in agent’s yard.” List the damages that occurred to the vehicle and provide proof of the alleged damages, if available. List the specific damages that occurred prior to the arrival of the vehicle in Lagos and the damages that occurred after arrival of the vehicle in Lagos prior to pick up of the vehicle by you or the consignee, if known. State what damages are attributable to each of the respondents, if known. Provide proof supporting your answers, if available.
6. State the value of the vehicle after the alleged damages, if known.
7. In the Complaint you contend that “the video provides undeniable truths that [the] driver was negligent in securing a vehicle for transport. That securement of the vehicle from either the chassis or suspension was improperly performed.” Explain how the video supports your above contentions.
8. Did you purchase insurance for the Escalade? Provide proof of purchase of coverage, if available. Did you make an insurance claim and receive a payment from the insurance company?

B. Sims and Sims Waters.

On or before March 22, 2019, respondents Ryan Sims and Sims Waters are **ORDERED** to file and serve responses to the questions below and file and serve the requested documents.

1. Describe the events that occurred between October 31, 2015, when Complainant tendered the Cadillac Escalade to Sims Waters and November 4, 2015, when complainant terminated her contract with Sims Waters.
2. The Complaint alleges that that the Cadillac Escalade was left at an unknown location and was exposed to inclement weather conditions and theft. (Complaint at 3.) Sims’ Motion contends that the Escalade was taken to the Bayonne Auto Terminal in Bayonne, New Jersey. (Sims Motion at 2.) Provide documents demonstrating the dates on which the Escalade was stored in the Bayonne Auto Terminal.
3. Does Sims Waters have any evidence related to the condition of the Escalade between the period of October 31, 2015, when it was tendered to Sims Waters and November 4, 2015,

when complainant terminated her contract with Sims Waters? Provide any evidence related to the condition of the vehicle during this period, if available.

C. Sea & Shore.

On or before March 22, 2019, respondent Sea & Shore is **ORDERED** to file and serve responses to the questions below and file and serve the requested documents.

1. Is Ahmed Takane employed in any capacity at Sea & Shore or serve in any capacity? If yes, state Ahmed Takane's title and role at Sea & Shore.
2. Describe the events that occurred in connection with the allegations raised in the Complaint.
3. Provide any invoices, dock receipts, bills of lading, and/or other shipping documents related to the shipping of complainant's Cadillac Escalade from the time it was tendered to Sea & Shore for shipping in the United States to the release of the vehicle to Complainant or the consignee in Nigeria.
4. Was insurance coverage provided for shipment of the Escalade? If yes, provide the insurance documents, if available.

D. Wynder Reply.

On or before February 19, 2019, complainant Wynder may file and serve a rebuttal to Respondents' assertions filed in response to this Order. The rebuttal should restate each assertion, then set forth Wynder's rebuttal immediately below.

VII. DISCOVERY.

Subpart J of the Commission's rules governing discovery is not applicable to proceedings under Subpart T. Therefore, there is no formal discovery in this proceeding. Although there is no formal discovery, the parties are urged to cooperate and voluntarily produce information requested by other parties. If a party is unable to obtain information from another party by voluntary means, on or before April 19, 2019, the party seeking the information may file a request that the administrative law judge require submission of the information pursuant to Rule 314. The request shall explain why the information is relevant to this proceeding, what attempts have been made to obtain the information voluntarily, and why the information cannot be obtained in some other manner. Such request will be served electronically on other parties. In addition to hard copies filed with the Commission pursuant to Rule 320, 46 C.F.R. § 502.320, the requesting party must send the request electronically to the Commission at the following email addresses: secretary@fmc.gov and judges@fmc.gov. A party opposing the request shall serve and file its response within five days of service of the request. In addition to hard copies filed with the Commission pursuant to Rule 320, the responding party shall send the response electronically to the Commission at the following email addresses: secretary@fmc.gov and judges@fmc.gov. It is hoped that the parties have no need to make such a request.

VIII. PRESENTATION OF EVIDENCE AND ARGUMENT.

A. Notice to Parties.

For the convenience of the parties, they are advised at this time of the manner in which evidence and argument will be presented in this proceeding to aid them in organizing their evidence in advance. A schedule for presentation will be issued after the parties provide the additional information required above.

B. Form of Presentation.

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall not count toward the page limit found in Rule 214(e). Each party is directed to send a word processing version of its brief to judges@fmc.gov.
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; *e.g.*, a page number in the appendix.¹ The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (*e.g.*, Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (*e.g.*, Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.

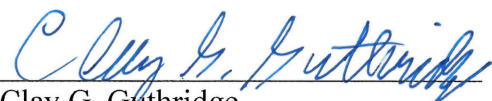
¹ Parties must designate specific facts and provide the court with their location in the record. *Orr v. Bank of Am., NT & SA*, 285 F.3d 764, 775 (9th Cir. 2002). "General references [to evidence] without page or line numbers are not sufficiently specific." *S. Cal. Gas Co. v. City of Santa Ana*, 336 F.3d 885, 889 (9th Cir. 2003).

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7; and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.
5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

IX. ATTORNEY FEES.

Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014, codified at 46 U.S.C. § 41305(e), and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding; that is, a losing party may be ordered to pay the attorney fees of a prevailing party. It is therefore in the best interests of all parties to proceed expeditiously.


Clay G. Guthridge
Administrative Law Judge